

कार्य नं. 1

प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)
FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.)

वि.पु.स्था.सौ.-II
S.P.E.C.-II

बुक नं. **1432**
Book No.

क्रम सं. **004**
Serial No.

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: Year FIR No. Date
2024 **16/10/2024**

Mumbai CBI, ACB, Mumbai RC0262024A0042

2. (1) विधान : धाराएं :
Act **PC Act, 1988** Sections **7**
(As amended in 2018)
- (2) विधान : धाराएं :
Act -- Sections --
- (3) विधान : धाराएं :
Act -- Sections --
- (4) अन्य विधान एवं धाराएं :
Other Acts & Sections --

3. (क) प्रतीत अपराध :
(a) Suspected Offence

Demand of undue advantage by public servant.

(ख) दिन : दिनांक समय
(b) Day Date Time

September 2024 onwards.

(ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date **11/10/2024**

कायमी अपराध : दिनांक समय
Entry No. **03** Date **16/10/2024** Time **1525 Hrs.**

4. सूचना का प्रकार : लिखित/मौखिक
Type of Information Written/Oral
Written

5. घटना का स्थान
Place of Occurrence **Mumbai, Maharashtra.**

(क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS

बीट नं. / Beat No.

(ख) पता:
(b) Address

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम
Name of PS

जिला
District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

(क) नाम
(a) Name

Smt. Nikita Rattanshi

(ख) पिता / पति का नाम
(b) Father's / Husband's Name

(ग) जन्म तिथि
(c) Date of Birth

(घ) राष्ट्रियता :
(d) Nationality **Indian**

(ड) पासपोर्ट नं. जारी दिनांक जारी होने का स्थान
(e) Passport No Date of Issue Palce of Issue

(च) व्यवसाय
(f) Profession **Private Person (Business)**

(छ) पता - **Ex-Director, M/s Birla Gold and Precious Metals Limited, 101**
(g) Address **Morya Landmark 2, Off New Link Road, Andheri West, Mumbai**

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण:
Details of known / suspected / unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

- (1) 1. **Shri. Ajay Pawar, Assistant Registrar of Companies & Inspector,**
- (2) **Pune ROC office, PNCTDA, Green Building, Block A 1st and 2nd**
- (3) **Floor, Near Akurli Railway Station Pune**

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant

No delay

9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)

Nil

10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen

N.A.

11. मर्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U. D. case No. if any

N.A.

12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

A complaint dated: 11.10.2024 of Smt. Nikita Rattanshi, Ex-Director, M/s Birla Gold and Precious Metals Limited, 101, Morya Landmark 2, Off New Link Road, Andheri West, Mumbai has been received in this office (Copy enclosed). She informed that ROC Pune Office initiated inquiry against M/s. Birla Gold and Precious Metals Limited. Shri. Ajay Pawar, Assistant Registrar of Companies & Inspector, Pune ROC office has issued an order dated 02.08.2024 u/s. 206(4) of Companies Act, 2013 addressed to Company and its Director to furnish documents.

Shri. Ajay Pawar again issued summon dated 27.08.2024 in which Auditors, all Directors and ex- Directors of complainant's company were asked to appear before him on 05.09.2024. In compliance of the said summon, Shri Vinod Sharma, CS of the complainant's company along with his C.A. met Shri Ajay Pawar, AROC, Pune. During this meeting Shri Ajay Pawar indirectly demanded bribe in order to show favour to complainant's company in the instant matter. Shri Vinod Sharma informed his company management about Shri Ajay Pawar's expectation. Shri Vinod Sharma called Shri Ajay Pawar over whatsapp call in which Shri Ajay Pawar demanded bribe of ₹30 lakhs for helping in ongoing enquiry and to resolve the matter by way of favouring the complainant's company. Thereafter on 23.09.2024, Shri Ajay Pawar, AROC abused and threatened Sh. Sandeep Joshi, Director, to face consequence of heavy penalty and prosecution to all Directors. Due to fear of heavy penalty and prosecution, after discussion with management of the company Shri. Vinod Sharma negotiated the demand with Shri Ajay Pawar who reduced his demand to ₹5 lakhs. Due to repeated demand of bribe by Shri Ajay Pawar, AROC, Complainant's company was forced to pay Rs. 3 Lakhs, as part payment to him (Shri. Ajay Pawar, AROC) on 07.10.2024 through Shri Vinod Shrama, CS. Further Shri. Ajay Pawar demanded the remaining bribe amount of Rs.2 lakhs before issuance of the order in ongoing inquiry.

The verification of the complaint has been conducted in the presence of the independent witnesses on 14.10.2024 & 16.10.2024 (Verification Report enclosed). During verification it is revealed that Shri. Ajay Pawar, Assistant Registrar of Companies & Inspector, ROC Pune after negotiation demanded bribe of Rs.5,00,000/- from complainant's company in lieu of favouring for not insisting on personal appearance of all Director/ Ex-Directors and he had accepted Rs.3,00,000/- from Mr. Vinod Sharma on 07.10.2024 as part payment of demanded bribe amount. During verification of complaint Shri. Ajay Pawar, Assistant Registrar of Companies & Inspector, ROC increased his demand to Rs.6,00,000/- and demanded remaining amount of Rs.3,00,000/- instead of Rs. 2,00,000/- from Shri Sandeep Joshi, Director of the company on 16.10.2024 in his office at Pune.

The aforesaid acts on the part of Shri. Ajay Pawar, Assistant Registrar of Companies & Inspector, Pune ROC, prima facie discloses offence punishable U/Section 7 of Prevention of Corruption Act, 1988 (amended in 2018) and hence, a Regular Case is registered against him and entrusted to Shri Nikhil Malhotra, DSP, CBI, ACB, Mumbai for investigation.


16.10.2024
(Suresh Kumar)
SP CBI ACB Mumbai.

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (ओ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item no. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा
Registered the case and took up the investigation or

A Regular Case is registered

- (2) निर्देशित (जांच अधिकरी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No. Took up for investigation

Shri. Nikhil Malhotra

**Dy. Supdt. of Police
CBI : ACB : Mumbai**

Yes

- (3) कारण से जांच के नामंजूर
Refused investigation due to अथवा
or

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।

R. O. A. C.
[Signature]
16/10/24

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature / Thumb impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name

(पद) / Rank

[Signature]
16.10.24
(Suresh Kumar)
SP CBI ACB Mumbai
No.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	* लिंग (Sex)	* जन्म की तारीख / वर्ष Date/ year of Birth	* शारीरिक गठन (Built)	* ऊंचाई से. मी. में (Height) (in Cms)	* वर्ण (Complexion)	* पहचान चिन्ह (Identification Mark/s)
1	2	3	4	5	6	7

विरूपता/विलक्षणता (Deformities peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress habit/s)
8	9	10	11	12	13

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.